

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Sheriff Courts (Scotland) Act, 1838 ...	1 & 2 Vict. c. 119.
Metropolitan Police Act, 1839 ...	2 & 3 Vict. c. 47.
Indictable Offences Act, 1848 ...	11 & 12 Vict. c. 42.
Prevention of Crimes Act, 1871 ...	34 & 35 Vict. c. 112.
Summary Jurisdiction (Process) Act, 1881 ...	44 & 45 Vict. c. 24.
Criminal Procedure (Scotland) Act, 1887 ...	50 & 51 Vict. c. 35.
Summary Jurisdiction (Scotland) Act, 1908 ...	8 Edw. 7. c. 65.
Bankruptcy Act, 1914 ...	4 & 5 Geo. 5. c. 59.
Criminal Appeal (Scotland) Act, 1926 ...	16 & 17 Geo. 5. c. 15.
Children and Young Persons (Scotland) Act, 1937 ...	1 Edw. 8 & 1 Geo. 6. c. 37.
Criminal Justice Act, 1948 ...	11 & 12 Geo. 6. c. 58.
Administration of Justice (Scotland) Act, 1948 ...	12, 13 & 14 Geo. 6. c. 10.
Legal Aid (Scotland) Act, 1949 ...	12, 13 & 14 Geo. 6. c. 63.
Criminal Justice (Scotland) Act, 1949 ...	12, 13 & 14 Geo. 6. c. 94.
Prison Act, 1952 ...	15 & 16 Geo. 6 & 1 Eliz. 2. c. 52.
Magistrates' Courts Act, 1952 ...	15 & 16 Geo. 6 & 1 Eliz. 2. c. 55.
Prisons (Scotland) Act, 1952 ...	15 & 16 Geo. 6 & 1 Eliz. 2. c. 61.
Summary Jurisdiction (Scotland) Act, 1954 ...	2 & 3 Eliz. 2. c. 48.
Army Act, 1955 ...	3 & 4 Eliz. 2. c. 18.
Air Force Act, 1955 ...	3 & 4 Eliz. 2. c. 19.
Police (Scotland) Act, 1956 ...	4 & 5 Eliz. 2. c. 26.
Magistrates' Courts Act, 1957 ...	5 & 6 Eliz. 2. c. 29.
Naval Discipline Act, 1957 ...	5 & 6 Eliz. 2. c. 53.
First Offenders Act, 1958 ...	6 & 7 Eliz. 2. c. 31.
First Offenders (Scotland) Act, 1960 ...	8 & 9 Eliz. 2. c. 23.
Mental Health (Scotland) Act, 1960 ...	8 & 9 Eliz. 2. c. 61.
Criminal Justice Act, 1961 ...	9 & 10 Eliz. 2. c. 39.

1963 CHAPTER 40

An Act to extend the area of operation and alter the name of the Colonial Development Corporation; and to amend sections 1, 4 and 6 of the Colonial Development and Welfare Act 1959. [31st July 1963]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) Subject to the provisions of this section, the Overseas Resources Development Act 1959 (in this section referred to as the principal Act) shall apply in relation to—

(a) any overseas country or territory within the Commonwealth which is not a colonial territory as defined by that Act,

Extension of powers and re-naming of Colonial Development Corporation.
7 & 8 Eliz. 2. c. 23.

not being a country which had become an independent sovereign country before 11th February 1948 or a territory administered by the government of such a country; and

(b) the New Hebrides;

as it applies in relation to a colonial territory as so defined; and references in that Act to a colonial territory or colonial territories shall be construed accordingly.

11 & 12 Geo.
6. c. 15.

(2) The Corporation established by the Overseas Resources Development Act 1948, and continued by section 1 of the principal Act by the name of the Colonial Development Corporation, shall be known as the Commonwealth Development Corporation.

(3) The Secretary of State may give directions to the Corporation requiring it to obtain his approval, in such cases as may be specified in the directions, before performing functions in or in relation to any Commonwealth country or territory to which the principal Act applies by virtue of paragraph (a) of subsection (1) of this section, and may give such approval subject to such conditions as he thinks fit; and section 8 and section 9(2)(b) of that Act (consultation with local interests and governments) shall not apply in relation to the performance of functions in any such country or territory.

5 & 6 Eliz. 2.
c. 20.

(4) In Part II of Schedule 1 to the House of Commons Disqualification Act 1957 (bodies of which all members are disqualified under that Act), for the entry relating to the Colonial Development Corporation there shall be substituted (at the appropriate point in alphabetical order) the following entry:—

“The Commonwealth Development Corporation”;

and the like amendment shall be made in the Part substituted for the said Part II by Schedule 3 to that Act in its application to the Senate and House of Commons of Northern Ireland.

(5) Subsections (1), (3) and (4) of section 5 of the principal Act are hereby repealed.

Amendments
of Colonial
Development
and Welfare
Act 1959.
7 & 8 Eliz. 2.
c. 71.

2.—(1) So much of section 1 of the Colonial Development and Welfare Act 1959 as requires the concurrence of the Treasury in the making of schemes under that section shall not apply to any scheme which satisfies such conditions as to cost and otherwise as the Treasury may from time to time determine.

(2) The following provisions shall have effect in substitution for section 4 of the said Act, that is to say—

(a) the sums to be paid out of moneys provided by Parliament for the purposes of schemes within the meaning of that

Act shall not exceed £30 million in the year ending on 31st March 1964 nor £55 million in the two years ending on 31st March 1965, and shall not exceed £340 million in all (excluding sums so paid before 1st April 1946);

- (b) no such scheme shall continue in force after 31st March 1966 except so far as it makes provision for the payment out of moneys provided by Parliament of pensions, allowances or other benefits in respect of injuries or diseases, or aggravation of diseases, incurred by persons engaged in activities carried on for the purposes of such schemes;
- (c) proposals for loans under section 2 of that Act shall not be approved so that the aggregate amount of such loans exceeds £20 million in respect of the proposals approved in the year ending on 31st March 1964 or £35 million in respect of the proposals approved in the two years ending on 31st March 1965, or £105 million in all; and
- (d) no proposals for loans under that section shall be approved after 31st March 1966, and no moneys shall be lent under that section after 31st March 1969.

(3) In section 6(2) of the said Act (power to make and continue schemes for joint benefit of former colony and other colony), for the words " if (in either case) the government of the former colony has undertaken to bear a reasonable share of the cost of the scheme " there shall be substituted the words " but (in either case) the sums paid out of moneys so provided, together with any contribution made by or on behalf of the government of the other colony, shall not exceed such share of the cost of the project to which the scheme relates as appears to the Secretary of State to be proportionate to the share of that colony in the benefits of that project ".

3.—(1) This Act may be cited as the Commonwealth Development Act 1963. Short title
and citation.

(2) This Act, so far as it amends the Overseas Resources Development Act 1959, may be cited together with that Act as the Overseas Resources Development Acts 1959 and 1963.

(3) This Act, so far as it amends the Colonial Development and Welfare Act 1959, may be cited together with that Act as the Colonial Development and Welfare Acts 1959 and 1963.
